

Rajasthan State Haj Committee Rules, 2006

Source: <https://indiankanoon.org/doc/75901860/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Rajasthan - Act

Rajasthan State Haj Committee Rules, 2006

RAJASTHAN

India

Rajasthan State Haj Committee Rules, 2006

Rule RAJASTHAN-STATE-HAJ-COMMITTEE-RULES-2006 of 2006

Published on 5 September 2006

Commenced on 5 September 2006

[This is the version of this document from 5 September 2006.]

[Note: The original publication document is not available and this content could not be verified.]

Rajasthan State Haj Committee Rules, 2006

Published vide Notification No. G.S.R. 43A, dated 5.9.2006

Last Updated 24th May, 2019

G.S.R. 43A. - In exercise of the powers conferred by sub-section (1) of section 47 of the Haj Committee Act, 2002 (Central Act No. 35 of 2002), State Government in consultation with the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Rajasthan State Haj Committee Rules, 2006.

(2)

These rules shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(a)

"Act" means the Haj Committee Act, 2002;

(b)

"Chairperson" means the Chairperson of the Committee;

(c)

"Committee" means the Rajasthan State Haj Committee constituted under section 18 of the Act;

(d)

"Section" means the section of the Act;

(e)

"State Government" means the Rajasthan Government;

(f)

"Retired employees" means an employee retired from the service of Rajasthan Government/ Central Government or Corporations thereunder;

(g)

The words and expressions used in these rules and not defined but defined in the Act shall have the respective meanings assigned to them in the Act.

3.

Head Quarter of the Committee.

- The Head Quarter of the Committee shall be at Jaipur.

4.

Nomination of the members of the Committee.

(1)

State Government shall nominate members of the Committee in accordance with the provisions of sub-section (1) of section 18.

(2)

State Government shall nominate the members of the Committee from amongst the members of Parliament/ members of Legislative Assembly with the consent of Speaker of the House of the People, Chairman of the council of States or Speaker of the State Legislative Assembly, as the case may be.

(3)

As there is no Legislative council in the State, nomination of members of Committee from amongst Legislative Assembly shall be made by State Government in place of nomination from amongst members of Legislative Council.

(4)

In case where there is no representation of Muslim Community in any category mentioned in the clauses (i) and (ii) of sub-section (1) of section 18 of the Act, nomination of member of any other Community from amongst House of people/ Council of States/ Legislative Assembly/ Local Body, as the case may be, shall be made by State Government in the Committee.

5.

Appointment and service conditions of employees.

(1)

Committee shall, with the prior permission of the State Government, for carrying out of regular business, sanction regular posts. Sanctioned posts for carrying out of regular business of the Committee shall be filled in on the basis of deputation from State employees of equivalent pay scale working in State Government Services. Service condition of employees appointed on deputation shall be the same as are applicable in their original service.

(2)

In case of non-availability of State employees on deputation, Committee may, with the prior permission of State Government, appoint retired state employees on contract basis on fixed remuneration for a maximum period of one year.

(3)

Committee, for carrying out of specific business, may make service stipulation on the basis of lump sum emoluments approved by State Government for a limited period.

6.

[Allowance payable to Chairperson and members.

[Substituted by Notification No. 9(8) Home Group-3/2002, dated 29.8.2006 and dated 5.9.2006, published in the Rajasthan Gazette, Extraordinary, Part IV-C(I), dated 31.8.2006 vide G.S.R. 41 and dated 7.9.2006, vide G.S.R. 43]

(1)

For performing regular work, attending the meeting of Committee and on tour etc. by the Chairperson of the Committee, shall be paid such allowances as may be determined by the State Government from time to time.

(2)

For attending the meeting of Committee by the members of the Committee, shall be paid such allowances as may be determined by the State Government from time to time.

(3)

All allowances payable to the Chairperson and members of the Committee shall be paid out of State Haj Fund.]

7.

Duties of Executive Officer.

- Besides implementing decisions of Committee, Executive Officer shall discharge such duties as may be determined by State Government time to time.

8.

State Haj Fund.

(1)

A State Haj Fund shall be established under section 32 of the Act.

(2)

State Haj Fund shall be kept in a Nationalized Bank:

Provided that with the prior permission of the State Government, State Haj Fund may be kept in any commercial bank.

(3)

No payment shall be made by the bank out of State Haj Fund upon a cheque signed jointly:-

(a)

by Chairperson and Executive Officer, or

(b)

by a member authorized by the Committee and Executive Officer.

9.

Application of State Haj Fund.

- Moneys credited to the State Haj Fund shall be applied in payment of all sums, charges and costs for the purposes specified in the Act including payment of:-

(a)

Salaries and allowances of officers and of employees of Committee excluding Executive Officer and of any other employee, whose services may at the request of the Committee, be placed at its disposal by the State Government;

(b)

Contribution to provident fund, gratuities, leave and compassionate allowance payable under these rules;

(c)

Travelling allowances and daily allowances to members of the Committee;

(d)

Travelling allowances and daily allowances in accordance with the honorarium prescribed for employees of State Government to such regular employees of the Committee who may be permitted to visit Saudi Arabia during a Haj season;

(e)

Expenditure for travelling of Khadimul-Hujjaj to Saudi Arabia according to norms prescribed by State Government;

(f)

Any other sum which may legally payable by the Committee.

10.

Entering into contracts and incurring expenditure by the Committee.

(1)

Subject to other provisions of this rule, the Executive Officer, shall be competent to enter into any contract or to incur any expenditure necessary for the performance of the duties of the Committee as laid down under the Act and these rules.

(2)

Every contract of expenditure: -

(a)

of a value or amount exceeding Rs. 2,500/-, but not exceeding Rs. 50,000/- shall require the prior sanction of Chairperson.

(b)

of a value or amount exceeding Rs. 50,000/-, shall required the prior approval of the Committee but Chairperson, if deems necessary, may give such sanction and may obtain ex-post facto approval:

Provided nothing contained in this sub-rule shall apply to expenditure relating to any of the following items, namely: -

(i)

Refund of travelling fare deposit and travelling fare amount of any deposit received from pilgrims or on this behalf;

(ii)

Effects of deceased pilgrim, payment of sale proceeds;

(iii)

Payment to and refund from airlines and other travel agencies on account of air fare or sea fare.

(3)

Every contract referred to in sub-rule (1) shall be in writing and shall be signed by the Executive Officer on behalf of the Committee and counter-signed by the Chairperson and any other member of the Committee duly authorized in this behalf, and be sealed with the common seal of the Committee.

(4)

No articles of dead stock of a book value upto Rs. 5,000/- shall be written off with the previous sanction of the Committee and when the book value of such articles exceeds Rs. 5,000/- the previous sanction of the State Government shall be obtained.

11.

Preparation, submission and approval of the budget of the Committee.

(1)

(a)

The Chairperson shall, at a special meeting to be held within three months before the end of Financial Year, lay before the Committee an estimate of the income and of the expenditure of the Committee for the year commencing on the first day of April next pining in such detail and form as the Committee may from time to time direct.

(b)

The said detail shall be examined and approved by the Standing Committee of finance, before they are placed before the Committee.

(c)

The aforesaid estimate shall be completed and printed and a copy thereof shall be sent by registered post or speed post or through a courier agency to each member at the address last given by each such member, at least ten clear days prior to the date of the special meeting.

(2)

In preparing the annual and supplementary estimates of the Committee's way and means and expenses to be incurred during the course of the year, the principles laid down in the State Government financial Rules shall be followed.

(3)

The Committee shall consider the estimate submitted to it under sub-rule (1) and shall sanction such estimate either unaltered or subject to such alteration as it may think fit.

(4)

The estimate, as sanctioned by the Committee shall be submitted to the State Government for its approval on or before

the first day of September in each year.

(5)

(a)

The Committee may, at any time during the year for which any estimate has been sanctioned under sub-rule (3), cause a supplementary estimate to be prepared.

(b)

Every such supplementary estimate shall be considered and sanctioned by the Committee and submitted to State Government in the same manner as if it were an original annual estimate.

(6)

The inclusion of an item in the budget estimate which has been sanctioned shall not be itself be deemed a sanction for the purpose of incurring expenditure and specific sanction. Wherever it is necessary in accordance with Rule (10), shall be obtained for any expenditure before it is incurred.

(7)

(a)

The Committee shall have power to re-appropriate from one such head to other sub-heads under the same major head without the sanction of the State Government.

(b)

The sanction of the State Government shall, however, be required for other re-appropriation.

12.

Maintenance of accounts, auditing and publication.

(1)

The accounts of the Committee shall be maintained in such manner and form as may be prescribed by the State Government in this regard.

(2)

Committee shall audit the accounts within three months from the close of financial year by a Chartered Accountant.

(3)

The objections raised by the auditor shall be settled by the Executive Officer with least possible delay and audit note shall be submitted before the Committee.

(4)

A copy of the audit note and reply of the Committee shall be submitted to the State Government for its consideration.

(5)

The accounts of the Committee as certified by auditor together with the audit report thereon, shall be forwarded annually by the Committee to the State Government for being laid before the Legislative Assembly.

13.

Returns, statements and reports to be submitted by the Committee.

(1)

The Executive Officer shall within three months from the close of each financial year, caused to be prepared and submitted to the State Government, a detailed report of the Committee's Administration during the preceding financial year together with a statement showing the amount of receipts credited and disbursements debited to the State Haj Fund during such year and the balance at the credit of the State Haj Fund at the close of such year.

(2)

A copy of the Administration report together with the aforesaid statement shall be forwarded to each member of the Committee at least eight days prior to the date of the ordinary meeting of the Committee in the month of July of the financial year.

14.

Control of the Committee in respect of financial matters.

(1)

The State Government may at any time appoint an auditor for the purpose of making special audit of the accounts of the State Haj Funds and submitted a report thereon to the Government.

(2)

The cost of such audit as may be determined by the State Government shall be met from the State Haj Fund.

Note. - The Hindi version of the said Rules published in the Rajasthan Gazette, Extraordinary, Part IV-C(I), dated 14.7.2006, vide G.S.R. 25 at page 39(1) to 39(7).

Related AI tags, queries and research notes

Translation